

25STCV21977 25STCV21977

County: los-angeles

Division: Civil Law and Motion

Department: 734

Hearing date: 2026-09-03

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Case Number: 25STCV21977 Hearing Date: September 3, 2026 Dept: 734

The

following tentative ruling is issued pursuant to Rule of Court 3.1308 at 1:33 PM on September 2, 2026.

Rule

of Court 3.1308(a)(1) provides that a “tentative ruling will become the ruling of the court if the court has not directed oral argument by its tentative ruling and notice of intent to appear has not been given.”

The

Court does not desire oral argument on the motion addressed herein. Notice of intent to appear is REQUIRED pursuant to California Rule of Court 3.1308(a)(1).

No

later than 4:00 p.m. on September 2, 2026, the moving and opposing parties must provide notice to ALL OTHER PARTIES and the staff of Department 734 whether the party intends to (1) appear and argue the motion, or (2) submit to the tentative ruling.

Notice to Department 734 should be sent by

email to , with opposing parties copied on the email. The high volume of telephone calls to Department 734 may delay the Court's receipt of notice, so telephonic notice to 213-830-0776 should be reserved for situations where parties are unable to give notice by email.

Plaintiffs

allege that Defendants made secured loans for Plaintiffs to purchase real property. However, the loans fell into default, which triggered a 27% interest

rate, and Defendant foreclosed. Plaintiffs seek to cancel the loans because the true default interest rate was concealed.

Defendants

Erik Rist, individually and as Trustee of the Joshua Hawkesby move for leave to amend the answer to the First Amended Complaint.

TENTATIVE RULING

Defendants

Erik Rist, individually and as Trustee of the Joshua Hawkesby's motion for leave to file a First Amended Answer is GRANTED. Defendant is to file a stand-alone copy of the First Amended Answer today, which is deemed served as of the date of this order.

ANALYSIS

Motion For Leave To Amend Answer

Request For Judicial Notice

Defendants

request that the Court take judicial notice of the following:

1. The Complaint filed on October

1, 2021, by plaintiffs Mountain Vista Holdings, LLC and Murrieta Holdings

2012-12 LLC against Defendants Galloway Financial, LLC and Erik Rist, as

Trustee, among others, San Diego County Superior Court Case No. 37-2021-00042025

(the "San Diego Action").

2. The Dismissal With Prejudice of

the San Diego Action filed on November 7, 2022.

3. The Complaint filed in this

action on July 25, 2025.

4. The Notice of Pending Action

(CCP §405.20) recorded on July 29, 2025, in the Official Records, Riverside

County, as Instrument No. 2025-0230390.

5. The First Amended Complaint
filed in this action on September 16, 2025.

6. The Verification of First
Amended Complaint filed in this action on September 18, 2025.

7. Minute Order in this action
dated September 29, 2025.

8. The Order Granting Motion to
Expunge Lis Pendens And Request for Attorney's Fees filed in this action on
September 29, 2025.

9. The Notice of Pending Action
(Code Civ. Proc. § 405.21) recorded on October 9, 2025, in the Official
Records, Riverside County, as Instrument No. 2025-0310096.

10. The Minute Order in this action
dated October 23, 2025.

11. The Answer of Galloway
Financial, LLC filed in this Action on October 27, 2025.

12. The Declaration of Bonnie
Brunet in Support of Defendant Galloway Financial, LLC's Motion for Sanctions
and Dismissal Under C.C.P. Section 128.7 filed in this action on November 21,
2025.

13. The Declaration of Martin Rist
in Support of Defendant Galloway Financial, LLC's Motion for Sanctions and
Dismissal Under C.C.P. Section 128.7 filed in this action on November 21, 2025.

14. The Minute Order in this action
dated December 17, 2025.

15. The Minute Order in this action
dated February 20, 2026.

16. The Substitution of Attorney as
to Defendant Erik Rist, as Trustee, filed in this action on March 9, 2026.

17. The Substitution of Attorney as
to Defendant Erick Rist, individually, filed in this action on March 9, 2026.

18. The Substitution of Attorney as
to Galloway Financial, LLC, filed in this action on March 9, 2026.

19. The Answer of Defendants Erik
Rist, Individually and as Trustee of the Joshua Hawkesby Exempt Trust Created
Under the Miller Intervivos Trust Dated 12/06/2006 filed in this action on
March 18, 2026.

20. The Minute Order in this action
dated March 20, 2026.

21. The Notice of Rulings and of
Setting of Future Hearings, Including Trial filed in this action on April 21,
2026 (including April 20, 2026 Minute Order attached thereto).

22. The Minute Order in this action
dated April 24, 2026 and Clerk's Certificate of Service by Electronic Service.

23. The Minute Order in this action
dated May 1, 2026, and Clerk's Certificate of Service by Electronic Service.

Requests Nos. 1, 2, 3, 5, 6, 7, 8,
10 – 23 are GRANTED per Evid. Code § 452(d)(court records).

Requests Nos. 4, 9 are GRANTED. The
Court may take judicial notice of recorded documents. (Evans v. California Trailer Court, Inc. (1994)
28 Cal.App.4th 540, 549, overruled on other grounds in Black Sky Capital, LLC v.
Cobb (2019) 7
Cal.5th 156, 165; Alfaro v. Community
Housing Improvement System & Planning Assn., Inc. (2009) 171
Cal.App.4th 263, 274).

Discussion

Defendants

Erik Rist, individually and as Trustee of the Joshua Hawkesby move for leave to

amend the answer to the First Amended Complaint. The Court has not received any opposition to this motion.

The

basis of this motion is that the original answer was not verified and the proposed amended answer contains additional affirmative defenses: lack of applicability of the CLRA and Elder Abuse Act and that the loans at issue do not have a usurious interest rate. This will enable Defendants to bring a motion for summary judgment.

The

Declaration of Joel G. Weinberg, who recently substituted in as counsel, satisfies the requirements of California

Rules of Court Rule 3.1324(b). A red-lined copy of the proposed Amended First Amended Answer reflecting the proposed changes is attached as Exhibit 1 to the Weinberg Declaration.

The motion

for leave to file a First Amended Answer is GRANTED. Defendant is to file a stand-alone copy of the First Amended Answer today, which is deemed served as of the date of this order.